



CHAPTER ii.

An Act to make further provision with respect to the
Servants' Pension Fund of the Great Western Railway
Company and for other purposes. [30th June 1903.]

A.D. 1903.

WHEREAS by section 22 of the Great Western Railway Act 1864 (in this Act referred to as "the Act of 1864") provision was made for the establishment of a fund for the payment of superannuation and other retiring allowances to the salaried officers and servants of the Great Western Railway Company (in this Act called "the Company") being contributors to such fund and for the preparation by a committee consisting of three persons nominated by the directors and certain chief officers of the Company in the said section specified of a scheme for giving effect to the purpose aforesaid :

And whereas such scheme was duly prepared and the fund established under the name of "the Great Western Railway Superannuation Fund" (in this Act called "the Superannuation Fund") :

And whereas by section 23 of the Act of 1864 the Company were required at the end of each and every half year to contribute out of the revenues of the Company a sum equal in amount to the sum which during the same half year had been contributed to the superannuation fund by the said officers and servants of the Company :

And whereas by section 58 of the Great Western Railway Act 1880 the Company were empowered to establish a superannuation fund for their servants in receipt of weekly wages employed by them and the provisions of sections 22 23 and 24 of the Act of 1864 were made applicable to any such fund provided that the

A.D. 1903. scheme for the establishment thereof were framed within twelve
— months after the passing of the said Act of 1880 :

And whereas such last-mentioned scheme was duly framed and the fund established in accordance therewith under the name of “ The Great Western Railway Company’s Servants’ Pension Fund ” (in this Act called “ the Pension Fund ”) :

And whereas it is provided by the rules of the Pension Fund that the contribution to be made by a member of the Pension Fund shall be the sum of threepence per week until he becomes entitled to a pension allowance therefrom and it is further provided by the said rules that any member thereof who after thirty years membership has attained the age of fifty-five years shall be entitled on his retirement from the service of the Company to a pension or superannuation allowance from the Pension Fund of ten shillings per week with an additional allowance of one shilling per week for every completed term of five years membership beyond the first thirty years :

And whereas provisions are also contained in the said rules enabling the committee appointed thereunder in certain events to levy additional contributions from the members and at any time if they think fit to reduce proportionately the amount of the superannuation or pension allowances :

And whereas the members of the Pension Fund are members also of the Great Western Railway Provident Society and it is provided by the rules of that society that the members shall be divided into local districts and that each district shall elect a delegate or delegates and two representatives for the purpose (inter alia) of taking part in and constituting general and special meetings of the society :

And whereas the rules of the Pension Fund provide that no new rule shall be made nor any of the rules in force be amended altered or rescinded unless with the consent of a majority of those present at a special meeting of the Great Western Railway Provident Society called for the purpose and with the approval of the directors signified under the hand of their secretary :

And whereas the moneys and investments of the Pension Fund on the thirtieth day of November one thousand nine hundred and two represented accumulations of assets amounting to the sum of one hundred and forty-nine thousand pounds the greater portion of which has been accumulated by means of the sums contributed by the Company under the provisions of section 23 of the Act of 1864 as herein-before recited :

And whereas there were on the thirtieth day of November one thousand nine hundred and two fourteen thousand eight hundred and fifty members of the Pension Fund of whom seven hundred and twenty-one were in receipt of pensions : A.D. 1903.

And whereas it has been ascertained by actuarial investigation that the resources of the Pension Fund on its present basis are entirely inadequate to meet its liabilities unless the present and prospective pension allowances be materially reduced :

And whereas in the opinion of the directors of the Company it would be extremely undesirable that the committee of the Pension Fund should be compelled to make any such reduction and with the view to avert such a necessity the directors have made proposals for placing the Fund on a sound basis and for enabling the members to secure a pension not less than that for which the rules of the Pension Fund provide :

And whereas such proposals provide—

- (1) That the Pension Fund shall cease to be administered under the existing scheme in force in relation thereto ;
- (2) That the members of the Pension Fund shall be formed into a friendly society and duly registered under and be governed by the Friendly Societies Act 1896 with such alterations in the existing rules as regards contributions scale of pension allowances and other matters as may be approved by a majority of the members present at a special meeting of the Great Western Railway Provident Society called for the purpose and by the directors of the Company ;
- (3) That when and so soon as the said society has been duly registered as aforesaid the whole of the moneys and investments of the Pension Fund should be and become the moneys and investments of the friendly Society so constituted and be transferred to the trustees thereof ;
- (4) That the Company should be released from the obligation under section 23 of the Act of 1864 to contribute to the Pension Fund and should in lieu thereof pay to the members pension allowances supplemental to those received from the friendly society and being at least equivalent in value to the contributions payable by the company under the said Act :

And whereas it is expedient that effect should be given to such proposals as herein-before provided :

A.D. 1903. And whereas the objects aforesaid cannot be attained without
— the authority of Parliament :

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows :—

Short title. **1.** This Act may be cited for all purposes as the Great
Western Railway (Pension Fund) Act 1903.

Provisions
as to Ser-
vants' Pen-
sion Fund. **2.**—(1) The members of the Pension Fund shall subject to
the approval of the provisions of this section by a majority of the
members present at a special meeting of the Great Western
Railway Provident Society called for the purpose and by the
directors of the Company be formed into a friendly society and
duly registered under and be governed by the Friendly Societies
Act 1896 with such alterations in the existing rules as regards
contributions scale of pension allowances and other matters as
may receive the like approval :

The rules of the friendly society shall provide that no new
rule shall be made nor any rule altered affecting eligibility for
membership or appointment of trustees nor the society dissolved
except with the approval of the directors of the Company under
the hand of their secretary.

(2) Upon the registration of the friendly society as aforesaid
the whole of the moneys and investments of the Pension Fund
shall be and become the moneys and investments of the friendly
society so constituted and shall be duly transferred to the
trustees thereof.

(3) From and after the registration of the friendly society as
aforesaid the existing scheme in force in relation to the Pension
Fund shall be cancelled and become inoperative and the provisions
of sections 22 23 and 24 of the Act of 1864 shall cease to apply
thereto.

(4) The Company shall from the date of registration aforesaid
pay out of the revenues of the Company to such members of the
friendly society as were members of the Pension Fund and who
are then in receipt of pension allowances one half of the
amount of the pensions then being paid to such members and
the friendly society shall pay the other half and the Company
shall also undertake to pay out of the same revenues to such
members of the friendly society as were members of the Pension

Fund and who shall hereafter become entitled to pension from the friendly society such allowances supplemental to the pensions received from the society as will secure that each such member shall receive from the company by way of supplemental pension a benefit at least equivalent in value to that which he would have derived from the contributions payable by the Company under the rules of the Pension Fund. A.D. 1903.

(5) Nothing in this section shall affect or take away the right or power of the Company to grant out of their own proper funds pension allowances to any of the officers or servants of the Company or such allowances during old age or sickness as the directors may from time to time think fit.

(6) No rule of the Company shall make it compulsory for any servant of the Company to become a member of the friendly society.

3. Nothing in this Act contained shall exempt the Company from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company. Provision as to general Railway Acts.

4. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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